

Procurement Policy v4.2

Effective: 1 January 2025

1. Purpose and Scope

This Procurement Policy ("Policy") establishes the mandatory terms, approval thresholds, and negotiation guidelines that govern all supplier and vendor agreements entered into by Nexora Technologies ("Company"). It applies to all personnel with authority to bind the Company to a contractual obligation.

This version (v4.2) is effective from 1 January 2025 and supersedes all prior procurement policy documents.

2. Liability Cap

The Company may accept aggregate liability caps in supplier agreements provided that such caps do not exceed five million US dollars (USD 5,000,000) per agreement, regardless of the total contract value. Caps expressed as a multiple of annual fees are not permitted under this version of the Policy.

Where the proposed cap exceeds USD 5,000,000, Legal approval is required prior to execution.

RULE | liability_cap: USD 5,000,000 (fixed ceiling)

3. Indemnification

The Company may accept broad-form indemnification clauses in agreements with strategic suppliers, provided that the indemnity is mutual and subject to the liability cap set out in Section 2.

Unilateral indemnities that run solely in favour of the supplier require prior written approval from the General Counsel.

RULE | indemnity_scope: broad_form (mutual) permitted

4. Data Retention

Personal data processed under a supplier agreement may be retained by the supplier for a period of up to ten (10) years following termination or expiry of the agreement, after which all personal data must be securely destroyed or returned.

Suppliers must provide written confirmation of destruction within thirty (30) days of the retention period ending.

RULE | retention_period: maximum 10 years post-termination

5. Automatic Renewal

Agreements containing automatic renewal provisions must limit each renewal period to a maximum of twelve (12) months. Renewal periods exceeding twelve months require VP-level approval.

The Company must retain a right to terminate for convenience with at least sixty (60) days notice in any agreement with an automatic renewal clause.

RULE | renewal_term: maximum 12 months per renewal period

6. Termination for Convenience

All supplier agreements must include a right for the Company to terminate for convenience. The required notice period must be between thirty (30) and ninety (90) days, as negotiated based on agreement complexity.

RULE | termination_notice: 30 to 90 days (both parties)

7. Governing Law

Agreements must be governed by the law of one of the following approved jurisdictions: the State of Delaware (USA), the State of New York (USA), or England and Wales.

Governing law clauses that specify any jurisdiction not on this list require prior approval from Legal.

RULE | governing_law: Delaware USA | New York USA | England & Wales

8. Payment Terms

Standard payment terms are net thirty (30) days from invoice receipt. Terms shorter than net 30 require Finance approval. Terms longer than net 60 are not permitted without CFO sign-off.

RULE | payment_terms: net 30 standard (range net 30 to net 60)

9. SLA and Uptime

For technology and SaaS agreements, the minimum acceptable uptime commitment is 99.5% measured on a monthly basis. Credits for downtime below the SLA threshold must be included in any such agreement.

RULE | sla_uptime: minimum 99.5% monthly

10. IP Ownership

All intellectual property created by a supplier in the course of performing services for the Company must be assigned to the Company upon creation. Work-for-hire language should be included where applicable under local law.

RULE | ip_ownership: Company retains all IP created under agreement

11. Approval Matrix

Agreements with a total contract value (TCV) below USD 250,000 may be approved by a Department Head. Agreements between USD 250,000 and USD 2,000,000 require VP approval. Agreements above USD 2,000,000 require CFO and General Counsel approval.

12. Policy Administration

This Policy is owned by the Legal & Compliance function and is reviewed annually. Questions should be directed to legal@nexora.example.com. Exceptions to this Policy require written approval from the General Counsel and must be logged in the Contract Management System.